

The Bihar Application of State Laws to Transferred Territories Act, 1976

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An Act to provide for the application of the laws of the State of Bihar as applicable to the districts of Bhojpur, Saran and Siwan to the territories transferred to the State of Bihar under the provision of the Bihar and Uttar Pradesh (Alteration of Boundaries) Act, 1968 and for matters connected therewith or ancillary or incidental thereto.

Be it enacted by the Legislature of the State of Bihar in the Twenty-seventh year of Republic of India as follows:-

1.

Short title and commencement.

(1)

This Act may be called the Bihar application of State Laws to Transferred Territories Act, 1976.

(2)

It shall come into force at once.

2.

Bihar Laws to apply to territories transferred to the State of Bihar.

- All laws of the State of Bihar in force in the districts of Bhojpur, Saran and Siwan whether made before or after the date of transfer of the territories to the State of Bihar by the Bihar and Uttar Pradesh (Alteration of Boundaries) Act, 1968 (Act 24 of 1968) (hereinafter referred to as the said Act) shall apply to the territories so transferred and laws of the State of Uttar Pradesh shall cease to be applicable to the said territories.

3.

Savings.

(1)

Nothing contained in Section 2 shall affect-

(a)

the previous operation of any law of Uttar Pradesh in the transferred territories: or

(b)

any penalty or punishment imposed or forfeiture incurred in respect of any offence committed against any such law; or

(c)

any investigation, legal proceeding or remedy in respect of any such penalty, punishment or forfeiture;

and any such investigation, legal proceeding or remedy may be instituted, continued or enforced and any such penalty or punishment or forfeiture may be imposed as if this Act had not been enacted.

(2)

Subject to the provisions of sub-section (1) anything done or any action taken, including any appointment or delegation made, notification, order, instruction or direction issued, rule, regulation, form, bye-law or scheme framed, certificate, patent, permit or licence granted or registration effected under such corresponding law shall be deemed to have been done or taken under the corresponding provisions of the law as now extended to, and in force in the said transferred territories and shall continue in force accordingly until superseded by anything done or any action taken under the said law.

4.

Repeal and Saving.

(1)

The Bihar Application of State Laws to Transferred Territories Third Ordinance, 1976 (Bihar Ordinance No. 205 of 1976) and Bihar Application of State Laws to Transferred Territories (Amendment) Ordinance, 1976 (Bihar Ordinance No. 210 of 1976) are hereby repealed.

(2)

Notwithstanding such repeal anything done or any action taken in the exercise of any power conferred by or under the said Ordinance shall be deemed to have been done or taken in the exercise of the powers conferred by or under this Act, as if this Act were in force on the day on which such thing or action was done or taken.

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